

Ashish Kesarwani v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 July 2015 · Writ-C No. 36568 of 2015 · Writ-C No. 36568 of 2015 · **Writ disposed of; dues payable in four monthly instalments.**

HEADNOTE

On a vigilance-raid penalty and recovery notice, the consumer offered to pay if given easy instalments. The licensee had no objection under clause 6.14 of the U.P. Electricity Supply Code, 2005. As a special case the Court stayed recovery and attachment, directed payment of the demanded amount in four monthly instalments (50% within fifteen days; balance in three equal monthly instalments), adjusted sums already deposited, waived collection charges on compliance, and left any dispute on calculation to remedies in law.

FACTUAL SUMMARY

After a vigilance raid on Ashish Kesarwani's electricity connection, a penalty of Rs 40,000 was imposed for irregularities. He deposited Rs 12,000. A recovery notice for Rs 44,000 then issued without an opportunity to pay the remaining Rs 28,000. He petitioned the Allahabad High Court, offering to clear the dues if granted easy instalments. Counsel for the distribution licensee stated there was no objection in view of clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where the licensee has no objection under clause 6.14 of the U.P. Electricity Supply Code, 2005, the Court may as a special case stay recovery of vigilance-penalty electricity dues and allow the consumer to pay the demanded amount in four monthly instalments—50% within fifteen days and the balance in three equal monthly instalments—adjusting deposits already made, waiving collection charges if the schedule is kept, and automatically vacating the stay on default. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 On a vigilance-raid penalty and recovery notice, the consumer offered to pay if given easy instalments. The licensee had no objection under clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMANDED AMOUNT AND THE VIGILANCE PENALTY ASSESSMENT

The Court did not examine the raid assessment or the Rs 44,000 demand on merits; any grievance against the account statement may be pursued in law without prejudice from the instalment order. ¶ 1